Growth, Infrastructure, and Roads in South Carolina

The legislative record behind South Carolinians' five growth-and-roads proposals, 2019–2026 — organized by how close each idea has come to becoming law.

WHAT THIS BRIEF COVERS

Rapid growth and its weight on roads, infrastructure, and natural resources ranked among the top issues in the Community Conversations, and five proposals advanced: new or expanded local funding tools (penny taxes, impact fees, tolls, parking fees), state or master planning in place of fragmented county plans, fixing existing roads first, opposing new taxes and fees, and a better contractor bidding process. Across the last four two-year sessions (2019–2026), the General Assembly took up 161 growth-and-roads bills in this set, and 12 became law. The wall here is not one committee but the money rooms: 138 of the 161 died in their first committee, 58 of those in House Ways and Means or Senate Finance, because penny taxes, tolls, impact fees, and gas-fee bills are all revenue bills. Nothing in the set ever lost a passage vote on the floor. Against that record, the five proposals sit in very different places. The funding tools mostly already exist as referendum-gated local taxes — but every bill widening them died unheard, impact-fee bills died unheard in both directions, and the one new tool enacted preserves green space rather than building roads. State master planning has never been filed in the form participants described. Fix-it-first moved outside the bill process — through the annual budget, and a pothole-repair program inside 2026's big SCDOT overhaul — while its standalone bills died. The gas-fee rollbacks died in the same money committees as the funding bills. And contractor accountability holds the record's headline: after dying unheard in 2019 and 2024, the restructuring of SCDOT itself passed near-unanimously in 2026, carrying new bidding methods with it. One note on what this brief counts: action by the state legislature only. Several proposals name tools state law already hands to counties and cities — penny taxes, impact fees, parking rules, local growth plans — and counties put those to work one by one, outside the legislature. A quiet record here does not mean a tool is going unused.

161	12	58 of 138	$842.4 million
growth, infrastructure, and roads bills, 2019–2026	became law — topped by the SCDOT Modernization Act (Act 177 of 2026)	first-committee deaths happened in the two money committees	in one-time road and bridge money across the last three enacted budgets

ALSO IN THE STATE BUDGET (PROVISOS)

Much of what happens on roads never appears in a stand-alone law. It lives in provisos — one-year policy rules enacted inside Part IB of the annual budget bill. The money is the headline: FY 2024-25's one-time list (proviso 118.22) put $200,000,000 into a CTC Acceleration Fund for the county boards that fix local roads, $100,000,000 into bridges, and $117,401,000 into rural road safety; FY 2025-26 added $200,000,000 for Bridge Modernization; FY 2026-27 added $175,000,000 (CTC) and $50,000,000 (bridges). FY 2026-27 also created the Road Buyback Program (proviso 84.18): SCDOT must list state roads that no longer serve a statewide purpose and pay counties and cities to take them back, resurfaced first. The rules recur annually: proviso 86.1 requires the 2017 gas-tax act's extra county-committee money go exclusively to repairs, maintenance, and improvements; SCDOT must publish its project priority lists with the ranking methodology (84.8); and since FY 2024-25 it is directed to upgrade its public project dashboard — status, forecast versus actual cost, on-time/on-budget (84.15). One proviso cut the other way: FY 2021-22's 117.96 barred impact fees on new school construction for one year, the record's only enacted impact-fee rule, not renewed. One budget year is a gap: FY 2020-21 has no enacted proviso set (the budget bill died during COVID; the state ran on a continuing resolution). Votes on provisos are votes on the whole budget bill, never on one proviso alone.

PROVEN SUPPORT: CLEARED A CHAMBER OR A COMMITTEE

Each measure won a floor majority or a committee report before stalling — and every House passage in this set died in the same room, Senate Finance.

The freight-rail credit — twice. H4817 (2022) and H3737 (2023), the Shortline Railroad Modernization Act — a tax credit for small railroads' track rebuilding — passed the House 106–3, then 65–46, and died in Senate Finance both times.

Water-and-sewer consolidation — H3075 (2023). The Rural Infrastructure Authority package passed the House 112–0 and died in Senate Finance; the refile (H3373, 2025) died in House Ways and Means.

Concurrency — S227 (filed 2025). Local governments could require that roads and pipes keep pace before new development is approved. Reported favorably, amended on the Senate floor April 29, 2026 — then the session ended before it completed passage. The furthest any growth-management bill traveled in this record; its House twin (H4050) never moved.

Transferable development rights — S288 (filed 2025). Letting development rights move between parcels by ordinance; favorable Judiciary report, died on the Senate calendar.

The House's own SCDOT bill — H5071 (2026). Reported out of Ways and Means, stalled in floor debate, and recommitted the same week the Senate's S831 passed the House 114–0. **The 2019 project-prioritization regulation (H4369)** passed the House 107–0 and was recommitted in the Senate after a favorable committee report.

ALREADY LAW — AND THE OPENINGS AROUND IT

Twelve laws in this record — one structural overhaul, one new local tax, and ten near-unanimous fixes at the edges.

New laws, 2019–2026

The 2025–26 session delivered the headline: **the SCDOT Modernization Act (S831, Act 177 of 2026** — Senate 37–1, House 114–0, conference report adopted 112–2 and 43–0). The Governor now appoints the Secretary of Transportation; the seven-member commission is abolished January 1, 2027. And the act is an omnibus: it created the Pothole Mitigation Program (public pothole reports — including a free phone app — a seven-day repair requirement, and $15 million a year for repeat potholes), gave SCDOT phased design-build and construction-manager/general-contractor bidding authority, rewrote toll law around new-capacity "choice lanes," authorized public-private partnerships up to sixty years, required an outside audit every four years, and reset the county "C"-funds rule to a thirty-three percent state-highway share. The same design had died unheard in House Judiciary in 2019 (H3111) and 2024 (H5045). The one new local funding tool is **the County Green Space Sales Tax Act (S152, Act 166 of 2022,** Senate 43–1 and 41–3, House 67–28): a voter-approved penny for preserving open land, not for roads. The rest passed near-unanimously at the edges: resilience planning with a required element in every local comprehensive plan (S259, Act 163 of 2020, 44–1 and 65–35); the road-funding vehicle fee's titling fix (H3505, Act 70 of 2021, 106–4 and 42–2); utility-relocation costs on road projects (S401, Act 36 of 2019, 38–0 and 108–0; extended by H3768, Act 244 of 2026, 103–0 and 44–0); the school-buildings penny expansion (H4589, Act 203 of 2026, 81–18 and 40–2); tourism taxes for flooding and drainage (S217, Act 146 of 2020, 34–2 and 87–15); beach-parking rules (S40, Act 89 of 2021, 44–0 and 102–10); the EV-charging framework (S304, Act 46 of 2021, 43–1 and 110–2); 5G small-cell rules limiting local zoning control (H4262, Act 179 of 2020, 108–2, 32–6, and 104–1); and transit-facility trespass (S399, Act 222 of 2026, 44–0 and 107–0).

Where lawmakers appear willing to go further

Act 177's path is the clearest signal: a design unheard for six years passed 114–0 once Senate leadership carried it, absorbing ideas whose standalone bills had died — design-build bidding, pothole reporting. The budget is the proven venue for fix-it-first money ($842.4 million in one-time sums across the last three budgets, plus renewed-every-year maintenance rules), and the Road Buyback Program extends that lane. And when a funding bill is narrow, referendum-gated, or opens an existing tool to more users — the green-space penny, the school-penny expansion, tourism-tax drainage — it passes by wide margins in the same chambers where broader versions never get hearings.

LITTLE TRACTION YET: STOPPED EARLY

Measured against the five proposals: two have enacted pieces, one is half-answered by the budget, one has never been filed as described, and every widening bill died without a hearing.

The penny expansions and tolls. Every bill widening the transportation penny died unheard in the money committees: making clear the penny can fund mass transit (filed all four sessions — S611/H4389 in 2019, H3535/S437 in 2021, S290, S562, and H4059 in 2023, S979 in 2026), penny stacking (H3129, 2021), eleven-year reimposition (S116, 2023), and grocery exemptions (H5188/S1113, 2024). All five toll bills died in first committee (S178, H3739, and S780 in 2019; S499 and the I-95 Bridge Toll Act S674 in 2023), as did the local-option gas fee for beach renourishment (S172, 2019) and the road-use-fee transparency account (H3483, 2021).

Impact fees, in both directions. Ten bills fought over the 1999 Development Impact Fee Act and none received a hearing: expanding it — residential-only fees (H4659), resurfacing as a fundable cost (H5088), a developer fee funding anti-displacement help (H3460, H4008), debt payoff for older fee programs (H4943) — and narrowing it for the building industry — excluding maintenance and administrative costs (H4981, S856, the H5017/H3165 packages), exempting repeat in-district buyers (H4672).

Planning and annexation. No bill from 2019–2026 proposes state or regional master planning in place of county plans — the design participants described has never been filed. Around it, everything died in committee: community impact assessments before major zoning decisions (H4390), county power to block annexation until an infrastructure impact study is approved (H5742), county standing to challenge annexations (H4651), the thrice-filed "donut hole" annexation bill (H5196, H3236, H4726), and the developer-side bills pulling the opposite way (permit shot-clocks, the Home Attainability packages, housing-cost impact analyses).

The standalone maintenance bills. The "Fix Our Roads Accountability Act" pavement-preservation program (H5363), the rule that SCDOT must maintain roads it absorbs (H4610), pothole-damage hotlines (H3871, H3451), sheriff road-hazard reports (H4687), county maintenance of orphan private roads (H3516), and the road-devolution bill (H4971) all died in first committee — before Act 177 enacted the pothole-reporting idea.

The gas-fee bills, both directions. Ten measures to freeze, repeal, or suspend the gas user fee died in the money committees without a vote: the freeze at eight cents (H4091), outright repeal (H4092), the 2022 price-spike suspensions (H5103; H5112's $3.25 trigger), and the 2026 wave (S1045 plus five near-identical House resolutions, H5398–H5475). So did the EV road-fee repeals (H4945, H3177) — and the one bill pointing the other way, H5331 (2026), which would have more than doubled the counties' share of the gas fee.

The standalone contracting bills. SCDOT design-build pilots (H5312, 2024; H3560, 2025 — the method Act 177 later enacted), the secretary's certification of SCDOT expenditure reports (H4090, 2021), disadvantaged-business contracting rules (S385, H4401, H4823, 2019–20), and the public-private partnership framework (H3559, 2021) died in committee; the 2020 resolutions approving SCDOT's own contractor performance-evaluation and disqualification regulations (S1069, S1070) were stranded on the Senate calendar when COVID ended the session.

WHERE THERE IS MOVEMENT — AND WHERE THERE IS NONE

Moving: SCDOT's structure and tools (Act 177, a near-unanimous omnibus absorbing bidding methods, pothole repair, toll rules, and an audit); the budget (the fix-first money, the Road Buyback Program, the renewed-every-year maintenance and transparency rules); and the narrow, referendum-gated edges of the funding toolbox (the green-space penny, the school-penny expansion, tourism-tax flexibility), which pass by wide margins. **Not moving:** transportation-penny expansions (0 of 11 heard), impact-fee bills (0 of 10, either direction), tolls (0 of 5), gas-fee rollbacks and the one gas-fee increase (0 of 11), the standalone maintenance-accountability bills (0 of 7), and the planning and annexation agenda (state planning never filed; concurrency died at the last step).

Where bills stop, and who sponsors them. The first committee is this record's great filter, and here it is the money rooms — House Ways and Means (41 first-committee deaths) and Senate Finance (17) — plus House Education and Public Works, the House's transportation committee (21). South Carolina publishes committee outcomes but never committee vote tallies, so no count exists for any of these stops; and party labels are deliberately absent throughout this packet — attaching them requires a ballot-roster join that was not fetched — so this brief makes no party claims. Rep. Pendarvis led twelve bills in the policy set (transit funding, penny stacking, EV-fee repeals); Sen. Davis seven (the enacted green-space penny, the 2026 concurrency bill); Rep. Hixon seven (water-sewer infrastructure, road maintenance); Sen. Scott six; Sen. Hutto the I-95 toll bills; Sen. Grooms carried the SCDOT Modernization Act. In 2026, Rep. White's four-bill SCDOT accountability package (road-hazard reports, the county gas-fee share, dissolving the commission, pavement preservation) died in committee the same spring S831 passed the House 114–0.

FEDERAL OVERLAP: WHAT WASHINGTON ALREADY COVERS

Where federal action already covers ground — and where the state route is the only one.

The road network's money and rules are layered. Federal-aid highway dollars flow through SCDOT, and the state gas user fee is collected on top of the federal motor-fuels tax that funds the federal-aid system — which is why the suspension resolutions were drafted against the state layer only. Tolling existing interstate lanes is restricted under federal highway law; the I-95 toll bills never advanced far enough to face that hurdle, and Act 177's "choice lane" design permits usage charges only on new capacity. Environmental reviews for federal-aid projects run under the national environmental review law, where South Carolina participates in the federal assignment program — Act 244 of 2026 renewed that machinery and consented to federal-court suits under it. What has no federal layer at all is most of this brief: the penny taxes, the 1999 impact-fee act, planning and annexation law, SCDOT's governance, the "C"-fund system, and the budget's provisos are state ground alone.

Full bill-by-bill detail, votes, sponsors, budget provisos, and sources: Appendices A–I.

Policy Spotlights

A focused, bill-by-bill look at how far each proposal from the final Community Conversations grid has traveled. Each policy is sorted into the same viability groups the brief uses, so the brief's top section shows what is viable overall and these spotlights show how viable one policy may be. The frequency, consensus, and concerns under each heading are what participants reported; everything else is the legislative record.

NEW OR EXPANDED LOCAL FUNDING TOOLS (PENNY / SALES TAX, IMPACT FEES, TOLLS, PARKING FEES)

Raised in Columbia, Florence, and Charleston, with high consensus: broad agreement that the state needs new sources of funding. The concern: people don't like being taxed without knowing where the money goes — participants attached the condition that new taxes come with transparency. The record: the tools mostly already exist, each referendum-gated with the projects listed on the ballot (where that transparency condition already lives) — but every widening bill died unheard, and the one new tool enacted preserves land rather than building roads.

Already law

- **Existing tools:** counties may levy a transportation penny (which can include tolls) and a capital-projects penny, each only by voter referendum with the projects listed on the ballot; the 1999 Development Impact Fee Act authorizes local impact fees under strict conditions (a capital-improvements plan first; no funding of maintenance or operations). Parking pricing is already a city power — S40 below is this record's one state law about it.
- **S152 (Act 166 of 2022):** the County Green Space Sales Tax — a new voter-approved penny for preserving open land; Senate 43–1 and 41–3, House 67–28. The record's one genuinely new local funding tool.
- **H4589 (Act 203 of 2026):** the local-option education capital improvements penny opened to more counties; 81–18, 40–2, and 91–14.
- **S217 (Act 146 of 2020):** tourism (hospitality) tax revenue may fund flooding and drainage repair in tourism areas; 34–2 and 87–15.
- **S40 (Act 89 of 2021):** state rules for municipal restrictions and paid beach parking on state highways, with directions for the parking money — the record's one parking-fee law; 44–0 and 102–10.
- **S831 (Act 177 of 2026), toll provisions:** usage charges only on new-capacity "choice lanes"; existing free lanes cannot be tolled.

Stopped early (the tax tools: died in first committee, no recorded vote)

- **Transportation penny for transit — filed every session:** S611/H4389 (2019), H3535/S437 (2021), S290, S562, and H4059 (2023), S979 (2026) — clarifying that penny revenue can fund mass transit, or adding ferries, greenbelts, and drainage to fundable projects.
- **Penny mechanics:** H3129 (2021) — penny stacking; S116 (2023) — eleven-year reimposition; H5188 and S1113 (2024) — grocery exemptions; S449 (2019), S298, H3911, S1006, and H5744 (2025–26) — added penny uses (economic development, workforce housing, greenspace, emergency services).
- **Tolls:** S178 and H3739 (2019), S499 (2023) — require SCDOT to toll I-95 at Lake Marion; S780 (2019) — review every project for toll financing; S674 (2023) — the Interstate 95 Bridge Toll Act, with resident relief.
- **Local fees:** S172 (2019) — a county-option one-cent gas fee, by referendum; H3483 (2021) — local road-use fees in a separate audited account; H4597 (2019) — grandfathering a pre-1997 county hospitality fee.

Stopped early (the impact-fee tool: died in first committee, either direction)

- **Expanding the 1999 Act:** H4659 (2023) — allow residential-only or commercial-only fees; H5088 (2026) — add road resurfacing as a fundable cost; H3460 (2021) and H4008 (2025) — a per-unit developer fee funding anti-displacement help; H4943 (2022) — let older fee programs pay down debt.
- **Narrowing it:** H4981 and S856 (2023–24) — exclude repair, maintenance, and administrative costs; H5017 (2024) and H3165 (2025) — the same exclusions with county-city development and annexation notices; H4672 (2025) — exempt repeat in-district home buyers.
- **The one enacted impact-fee rule blocked the fees:** FY 2021-22 budget proviso 117.96 barred impact fees on new school construction for one year; not renewed.
- **Who actually charges the fee:** a county or city, by local ordinance after a required study — decisions made county by county, outside the legislature. The bills above are fights over the state rulebook that governs those local fees, not a sign the fees are unused.

STATE COMPREHENSIVE / MASTER PLANNING VS. FRAGMENTED COUNTY PLANS

Raised in all four community conversations — the highest frequency in this issue — with mixed consensus: some cited the efficiency of centralized planning, others were skeptical of removing local control; a consensus recommendation in Charleston. The concern: removing local control could let the state go against residents' wishes. The record: the design described has never been filed; what exists is one enacted state layer on local plans, a growth-management bill that died at the last step, and annexation fights pulling both directions.

Already law

- **S259 (Act 163 of 2020):** the Disaster Relief and Resilience Act — a state Office of Resilience, a statewide resilience plan, and a required resiliency element in every local comprehensive plan; Senate 44–1, House 65–35. The record's one enacted statewide planning layer, and proof the add-a-required-element path can pass (its House twin, H4731, died in Judiciary).
- **H4262 (Act 179 of 2020):** the Small Wireless Facilities Deployment Act — statewide rules for 5G small cells in rights of way, limiting local zoning control; 108–2, 32–6, and 104–1. The record's one enacted state-over-local land-use rule.

Proven support

- **S227 (filed 2025):** concurrency — development approval waits until infrastructure keeps pace; favorable committee report, amended on the Senate floor April 29, 2026, died without completing passage. The furthest any growth-management bill traveled in this record.
- **S288 (filed 2025):** transferable development rights by local ordinance; favorable Judiciary report, died on the Senate calendar.

Stopped early (died in first committee, no recorded vote)

- **Concurrency twins:** H5562 (2024), H4050 (2025).
- **Zoning-decision accountability:** H4390 (2025) — community impact assessments (infrastructure, affordability, displacement) before major zoning decisions; S530 and H4293 (2025) — permits void when zoning officials find a use not permitted.
- **Annexation controls:** H5742 (2026) — a county could block municipal annexation until an infrastructure impact study and mitigation plan is approved; H4651 (2023) — the Annexation Fairness Act, county standing to challenge annexations; H5196 (2022), H3236 (2023), and H4726 (2025) — cities could annex "donut holes" they surround.
- **The developer-side counter-current (loosening local control):** the Home Attainability permitting packages (S528/H3863, 2021; S4, 2023 and 2025), 45-day permit shot-clocks (H4652, H3215), housing-cost impact analyses (H4482/S757, 2019), and plat-filing changes (H4598/S833, 2019).

Never filed

- State-level or regional comprehensive planning replacing county-by-county plans — the design participants described — appears in no bill from 2019–2026, verified against the full-text discovery and a statewide title scan. The county-by-county plans themselves are what state law requires: every planning county and city must adopt a comprehensive plan and keep it current, so counties plan continuously. What has never been filed is a state bill to replace or coordinate that system — not planning itself.

FIX THE ROADS WE'VE GOT FIRST

Raised in Columbia and the online session, with mixed consensus: maintenance must be factored in, but many participants want expanded infrastructure too. The concern: expansion expense versus upkeep — some worried too much goes to capital projects, not enough to maintenance. The record: every standalone maintenance bill died in first committee, while the idea moved anyway — a pothole-repair program enacted inside the SCDOT overhaul, and the maintenance money running through the annual budget.

Already law (inside the SCDOT Modernization Act)

- **S831 (Act 177 of 2026), maintenance provisions:** the Pothole Mitigation Program (new Section 57-5-1800) — the public reports potholes by phone, website, or a free mobile app; SCDOT must repair each reported pothole within seven days; and $15,000,000 a year is set aside for full-depth repair of repeat potholes. The act also reset the county "C"-funds rule: a thirty-three percent state-highway share, the rest at the county transportation committee's discretion.

Where it is policy year to year (budget provisos)

- **Proviso 86.1 (renewed every enacted year):** the 2017 gas-tax act's extra County Transportation Committee money must be spent exclusively on repairs, maintenance, and improvements to the state highway system. The county committees pick the actual project lists — choices recorded at the county level, not in the legislature.
- **The one-time money:** FY 2024-25 (118.22) — $200,000,000 CTC, $100,000,000 bridges, $117,401,000 rural road safety; FY 2025-26 (118.22) — $200,000,000 bridges; FY 2026-27 (118.21) — $175,000,000 CTC, $50,000,000 bridges.
- **FY 2026-27 proviso 84.18:** the Road Buyback Program — SCDOT identifies state roads no longer serving a statewide purpose and pays counties and cities to take them, resurfaced first.
- **A lapsed rule:** the proviso authorizing gas-fee transfers for the 2017 act's preventative-maintenance tax credit (84.12) appeared in every enacted budget through FY 2024-25 and stopped appearing in FY 2025-26.

Stopped early (died in first committee, no recorded vote)

- **H5363 (2026):** the "Fix Our Roads Accountability Act" — a statewide pavement preservation program with annual reports to the General Assembly.
- **H4610 (2023):** SCDOT must properly maintain roads transferred into the state system; **H4971 (2026)** — the reverse, transferring state roads to counties.
- **H3871 (2021) and H3451 (2023):** the pothole-hotline bills — the design Act 177's program later enacted; **H4687 (2025)** — sheriff road-hazard reports with a public database; **H3516 (2023)** — county maintenance of orphan private roads; **S1043 (2022)** — fifteen percent of "C" funds to rural roads.

NO NEW TAXES / OPPOSE EXTRA TAXES AND FEES

Raised at multiple tables in Columbia and Florence, with low consensus — the sharpest split in this issue: is new money essential, or is keeping costs low the priority? Some argued low taxes are one reason infrastructure suffers. The record mirrors the split: ten gas-fee rollback measures died without hearings in the same money committees that never heard the funding-tool bills — and the one gas-fee increase died there too.

Stopped early (died in first committee, no recorded vote)

- **Freeze or repeal:** H4091 (2021) — stop the 2017 phase-in at eight of twelve cents; H4092 (2021) — repeal the gas user fee and road tax.
- **2022 price-spike suspensions:** H5103 — suspend for one year; H5112 — suspend whenever average pump prices top $3.25 a gallon.
- **2026 suspensions:** S1045 — thirty days, extended thirty more if prices haven't fallen 15%; H5398, H5419, H5422, H5443, and H5475 — five near-identical sixty-day suspension resolutions.
- **EV fees:** H4945 (2022) and H3177 (2023) — repeal the biennial road-use fee on electric and hybrid vehicles.

- **The opposite direction, same room:** H5331 (2026) — more than double the county ("C" fund) share of the gas fee; died in House Ways and Means.

Already law (tightening, not cutting)

- **H3505 (Act 70 of 2021):** the road-funding infrastructure maintenance fee now applies at first titling as well as first registration, closing a collection gap; House 106–4, Senate 42–2.
- **The structural meeting point:** every local funding tool in this record is referendum-gated — the split participants voiced is resolved in existing law by letting voters decide, county by county.

IMPROVE THE CONTRACTOR BIDDING PROCESS / HOLD CONTRACTORS ACCOUNTABLE

Raised in the online conversation and Greenville, with high consensus: a low-cost fix — participants felt the state was not getting quality contractors for road repairs and pushed for more standards and transparency in bidding. The record: no standalone bidding bill ever reached a floor vote — then the bidding methods passed anyway, inside the SCDOT Modernization Act, and the transparency tools live as one-year budget rules.

Already law (inside the SCDOT Modernization Act)

- **S831 (Act 177 of 2026), contracting provisions:** phased design-build authority (new Section 57-5-1710) and construction manager/general contractor authority (57-5-1720) — qualifications-first bidding methods; public-private partnership agreements capped at sixty years (57-3-205); and a required independent external performance and organizational audit of SCDOT every four years.

Already law (edges of the lane)

- **S401 (Act 36 of 2019):** entities building transportation projects bear the cost of relocating water and sewer lines; 38–0 and 108–0. Extended to 2032 by **H3768 (Act 244 of 2026)**, 103–0 and 44–0.
- **H4115 (Act 69 of 2023):** the contractor licensing law rewrite — definitions, thresholds, penalties (licensing, not road bidding); 90–15 and 42–0.

Where the transparency tools live now (budget provisos, one year at a time)

- **Proviso 84.8 (renewed yearly):** SCDOT must publish its project priority lists and the engineering directives explaining the ranking methodology in a conspicuous public place.
- **Proviso 84.18 → 84.15 (FY 2024-25 onward):** the Programmed Project Viewer public dashboard directive — every project's status, contract type, forecast versus actual cost, projected completion date, and an on-time/on-budget list, with quarterly reports to the budget chairmen. These rules lapse in any year a budget drops them.

Stopped early or stranded

- **Design-build, standalone:** H5312 (2024) and H3560 (2025) — died in Ways and Means and Education and Public Works before Act 177 enacted the method.
- **SCDOT's contractor regulations (2020):** S1069 — the contractor performance-evaluation scoring regulation; S1070 — disqualification and suspension from SCDOT contracts; both placed on the Senate calendar and stranded when COVID ended the session.
- **Oversight and access:** H4090 (2021) — certified public SCDOT expenditure reports; S385, H4401, and H4823 (2019–20) — disadvantaged-business participation in highway contracting; H3559 (2021) — the public-private partnership framework; H3119 and H3344 (2023, 2025) — foreign-company contract bans; H4369 (2019) — the prioritization-regulation resolution, House 107–0, recommitted in the Senate.

GLOSSARY

- **Penny tax (local option sales tax):** An extra cent of sales tax a county can charge if voters approve it in a referendum. Separate pennies exist for transportation, capital projects, school buildings, and — since 2022 — green space; the ballot must list what the money is for.
- **Transportation penny:** The local-option sales tax for roads, bridges, and transit projects (Title 4, Chapter 37); it can include tolls. The bills clarifying it can fund mass transit never got hearings.
- **Capital project sales tax:** The local-option penny for one-time construction projects, with projects listed on the ballot.
- **Impact fee:** A one-time charge on new development to cover the capital costs (roads, water, parks) the development creates. Legal in South Carolina since 1999, with limits: a capital-improvements plan first, and no funding of maintenance or operations.
- **Concurrency:** A rule that new development is approved only if infrastructure — roads, water, sewer — can keep pace. The 2026 bill (S227) died on the Senate floor calendar after being amended.
- **Gas user fee:** South Carolina's gas tax, raised two cents a year from 2017 to 2022 by Act 40 — twelve cents in all. Every suspension and repeal bill died in committee.
- **Infrastructure maintenance fee:** The fee (up to $500) paid when a vehicle is first registered or titled in South Carolina; it funds road repair. Act 70 of 2021 closed a collection gap.
- **"C" funds / County Transportation Committees (CTCs):** Each county's share of the gas tax, spent by a county board on local roads. The budget requires the post-2017 increase to go exclusively to repairs and maintenance; Act 177 reset the state-highway share to thirty-three percent.
- **SCDOT Commission:** The seven-member board that ran the Department of Transportation and appointed its secretary — until Act 177 of 2026 gave the appointment to the Governor and abolished the commission effective January 1, 2027.
- **Transportation Infrastructure Bank:** The state board financing large projects with loans and bonds; Act 177 replaced the commission's chairman with the transportation secretary on its board.
- **Design-build / CM-GC:** Contracting methods that pick a builder on qualifications before the final price — phased design-build and construction manager/general contractor; both enacted for SCDOT by Act 177 after standalone bills died.
- **Choice lanes:** Act 177's name for optional express toll lanes. Usage charges may only be placed on new lanes that add capacity — existing free lanes cannot be tolled.
- **Pothole Mitigation Program:** Created by Act 177: the public reports potholes (by phone, website, or a free app) and SCDOT must repair each within seven days, with $15 million a year set aside for repeat potholes.
- **Road Buyback Program:** The FY 2026-27 budget program paying counties and cities to take back state roads that no longer serve a statewide purpose, resurfaced first.
- **Public-private partnership (P3):** A contract letting a private entity help finance, build, or operate a public project; Act 177 authorizes them for SCDOT with a sixty-year cap.
- **Comprehensive plan:** The ten-year plan state law requires every planning county and city to adopt, with required elements. Act 163 of 2020 added a resiliency element.
- **Home rule:** The principle that counties and cities govern local matters themselves. The planning record pulls both ways: state rules on local plans versus local control over growth and annexation.
- **Annexation:** A city expanding its boundaries to take in new territory. Bills to let counties challenge or block annexations — and to let cities absorb "donut holes" — all died in committee.
- **Proviso / Part IB:** A one-year policy rule enacted inside the annual state budget bill; Part IB is the budget section that carries them. Votes attach to the whole budget bill, never one proviso.

LEGISLATIVE PROCESS GLOSSARY

- **H / S bill numbers:** The chamber a bill started in (House or Senate) plus its number. Numbering restarts every two-year General Assembly, so the same number in different sessions is a different bill.
- **General Assembly / session:** The legislature elected for two years — the 123rd (2019–2020) through the 126th (2025–2026) appear in this brief. It meets each January; a bill filed in the first year stays alive into the second, and everything unpassed dies when the second year ends.
- **Chambers:** The 124-member House of Representatives and the 46-member Senate; a bill must pass both to reach the Governor. Vote totals below those figures reflect absences.
- **Prefiled:** Filed in the weeks before the January session begins.
- **First committee:** The committee a bill is sent to after introduction. Most bills that fail die there, with no further action recorded — in this record the most common rooms are House Ways and Means and Senate Finance, the money committees, because most growth ideas are tax or fee ideas.
- **Committee report:** The committee's published outcome — "Favorable" or "Favorable with amendment." South Carolina publishes these outcomes but never committee vote tallies, so no committee vote counts exist anywhere in these documents.
- **Readings:** A bill passes a chamber through three readings; the recorded roll calls in these documents attach to second or third reading, or to "Passage of Bill."
- **Roll call / vote pairs (e.g. 37–1 and 114–0):** Yes–no floor tallies, one per chamber — for the SCDOT Modernization Act, the Senate's third reading and the House's passage vote.
- **Second chamber:** After passing its own chamber, a bill repeats the whole process — committee, then floor — in the other one. Every House passage in this set that died stopped in Senate Finance.
- **Conference committee:** Negotiators from both chambers who reconcile differing versions; the SCDOT Modernization Act finished through a conference report adopted 112–2 and 43–0.
- **Joint resolution:** A measure with the force of law used for single actions — the gas-fee suspensions and the approvals of SCDOT's regulations traveled this way.
- **Placed on the calendar without reference:** A measure sent straight to the floor list, skipping committee; the 2020 SCDOT contractor regulations sat there when COVID ended the session.
- **Recommitted:** Sent back to committee from the floor — how the House's own SCDOT bill (H5071) ended after debate stalled, and how the 2019 project-prioritization resolution ended in the Senate.
- **Ratified / R number:** After both chambers pass identical text, the bill is ratified and numbered before going to the Governor.
- **Act number:** A signed bill becomes a numbered act of its year — "Act 177 of 2026" — the citation these documents use for enacted bills.
- **Veto / override:** The Governor can reject a passed bill; the General Assembly can override with a two-thirds vote in each chamber. No bill in this set was vetoed.
- **Budget proviso (Part IB):** One-year policy rules enacted inside the annual appropriations act, where the fix-it-first rules, the one-time road money, the Road Buyback Program, and SCDOT's transparency directives in this brief live. Votes are on the whole budget bill, never on one proviso.
- **Sponsor / lead sponsor:** The lawmakers who formally introduce a bill; the first member on the official sponsor line is its lead. Party labels appear nowhere in these documents because the roster join was deliberately not fetched.
- **"Died at the session's end":** The measure cleared every vote it faced but ran out of calendar — a timing stop, not a recorded "no."